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Submitter Information

Name: Robin Teng

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General Comment

Hello!

My name is Robin and I'm a freelance graphic designer. I've worked for years (even attended University!) to develop the skills and knowledge to build my business. While I'm searching for a full-time job, it's been difficult when many require knowledge of systems that take work from artists who have similarly worked as hard as I have to get here. Not to mention, a lot of jobs for graphic designers have been replaced with "AI Specialists."

The AI systems made by Big Tech companies such as OpenAI (Microsoft) and Google threaten to destroy thousands of small American businesses with their recent demand to create special carve outs in copyright law.

AI systems can only produce work when training on the work of other people. Both my own unique work and the work of hundreds of other American creators was taken and fed into these AI systems without any consent or compensation. They ingest the work we make, reassemble it, and then sell it back to OUR clients. They are direct competitors and cut us out of the marketplace, despite them using our work to get there.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use," even if the work is later used for commercial means.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

If you want to protect American innovation, then protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you so much for your time and the opportunity to comment on these issues. I hope you hear us out.